

BC546240 BC546240

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-06-30

Motion: DEFENDANT CEDARS-SINAI MEDICAL CENTER'S DEMURRER TO PLAINTIFFS' COMPLAINT WITH MOTION TO STRIKE

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Case Number: BC546240 Hearing Date: June 30, 2026 Dept: NWI

THERE ARE TWO TENTATIVES POSTED BELOW:

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#1

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

YEVGENYA SHEVTSOV and TATYANA SHEVTSOV, heir and
successor-in-interest to Nadezhda Babitskaya,

Plaintiffs,

vs.

COUNTRY

VILLA WILSHIRE HEALTHCARE CENTER; COUNTRY VILLA HEALTH SERVICES; CEDARS-SINAI
MEDICAL CENTER; RRT ENTERPRISES; SR&DR OPERATING COMPANY, LLC; ABRAHAM
ISHAAYA; MICHAEL BORROCHIM; WILLIAM STANFORD; FANNY RODRIGUEZ; BRADLEY ROSEN;
ELEANOR LAVRETSKY; IGNOR SHNAIDER; GADSON JOHNSON; NICETO LOPEZ; MARINA
VAYSBURD; JAY GLADSTEIN; JON KEA; MARINA KOVALEVSKY; CAROLYN BELL; SHAUN
MILLER; DEMI PENERA; LOURDES UY; and EURLYN VILLAMOR;

Defendants.

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CASE

NO: BC546240

[TENTATIVE]

ORDER RE: DEFENDANT CEDARS-SINAI MEDICAL

CENTER'S DEMURRER TO PLAINTIFFS' COMPLAINT WITH MOTION TO STRIKE

Dept.

I

DATE:

JUNE 30, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: MAY 20, 2014

TRIAL

DATE: NONE

I.

BACKGROUND

On May 20, 2014, Plaintiffs Yevgenya Shevtsov and Tatyana Shevtsov, heir and successor-in-interest to Nadezhda Babitskaya ("Plaintiffs") filed a complaint against Country Villa Wilshire Healthcare Center, Country Villa Health Services, Cedars-Sinai Medical Center, R&T Enterprises, SR&DR Operating Company, LLC, Abraham Ishaaya, Michael Borrochim, William Stanford, Fanny Rodriguez, Bradley Rosen, Eleanor Lavretsky, Ignor Shnaider, Gadson Johnson, Niceto Lopez, Marina Vaysburd, Jay Gladstein, Jon Kea, Marina Kovalevsky, Carolyn Bell, Shaun Miller, Demi Penera, Lourdes Uy, and Eurlyn Villamor (collectively "Defendants") alleging two causes of action: (1) intentional tort; and (2) fraud.

From July 26, 2019, to January 16, 2024, the action was stayed as a result of Defendant Country Villa Wilshire Healthcare Center's filing for relief under the US Bankruptcy code.

On January 16, 2026, Plaintiffs filed their first amended complaint ("FAC") against Defendants and West Hollywood Healthcare & Wellness Center, LP alleging nine causes of action: (1) wrongful death; (2) elder abuse and neglect; (3) battery; (4) civil conspiracy to commit elder abuse and battery; (5) fraud; (6) constructive fraud; (7) fraud by misrepresentation; (8) SNF Patient Rights' violations; and (9) willful misconduct.

On April 23, 2026, Defendant Cedars-Sinai Medical Center ("Cedars-Sinai") filed the instant demurrer to and motion to strike portions of Plaintiffs' FAC.

On May 13, 2026, Plaintiffs filed their opposition.

On May 19, 2026, Cedars-Sinai filed its reply.

II.

LEGAL STANDARDS

Demurrer

A

demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.) The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP

§ 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the

responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 [“Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.)”].) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.”].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Cal. Code of Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be

allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank, supra, 39 Cal.3d 311, 318.)

Before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Meet and Confer

Defense

counsel declares that, on April 9, 2026, the parties met and conferred regarding the instant demurrer and motion to strike via telephone. (Sabzerou Decl. ¶ 5.) The parties were unable to reach an agreement. (Ibid.) Accordingly, the Court finds that Cedar-Sinai satisfies the meet and confer requirements of CCP §§ 430.41(a) and 435.5(a).

Demurrer

Cedars-Sinai demurs to Plaintiffs' entire complaint on the grounds that (1) Plaintiffs' claims are time-barred and (2) Plaintiffs fail to state sufficient facts to constitute a cause of action. (See Demurrer at pp. 2-3.)

Time-Barred

First, the Court

addresses Cedars-Sinai's argument that Plaintiff's complaint is time-barred. Cedars-Sinai argues that Plaintiffs' claims are barred by the applicable statute of limitations for professional negligence pursuant to CCP § 340.5, which provides that a claim is barred "one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury." (CCP § 340.5.) "Under this statute, injury is not synonymous with wrongful act; rather, injury is a word of art which refers to the damaging effect of the wrongful act and not the act itself. [Citations.]" (Zambrano v. Dorough (1986) 179 Cal.App.3d 169, 172.) Notably, when determining the applicable running period for the statute of limitations, California courts consider "substance over the form" of the complaint, requiring courts to examine the nature of the professional relationship and whether the injury resulted from the provision of medical services. (Flores v. Presbyterian Intercommunity Hospital (2016) 63 Cal.4th 75.)

Here, Plaintiffs' original complaint was filed on May 20, 2014, and Plaintiffs' FAC was filed on April 23, 2026. (See Complaints.) Notably, an amended complaint relates back to the original complaint when resting on the same general set of facts as the original complaint. (San Diego Gas & Electric Co. v. Superior Court (2007) 146 Cal.App.4th 1545.) Here, Plaintiffs' complaints, while providing a limited set of facts, both arise from the allegedly wrongful death of Nadezhda Babitskaya on May 21, 2012, "[a]s a proximate result of continuing abuse and neglect." (See Complaints.) Accordingly, Plaintiffs' 2026 FAC relates back to their original complaint filed on May 20, 2014. Therefore, Plaintiffs' complaint against Cedars-Sinai for professional negligence violates the one-year statute of limitations set by CCP § 340.5.

In opposition, Plaintiffs argue that Cedars-Sinai ignores the language of CCP § 340.5 which provides a three-year statute of limitations after the date of injury. (See Opposition at 3:6-27.) However, CCP § 340.5 provides specifically that "[i]n an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (CCP § 340.5)(emphasis added.) Here, considering Plaintiffs' claims arise from the alleged wrongful death of Nadezhda Babitskaya arising from "repeated infections requiring frequent hospitalization" (see Complaints), Plaintiffs' own complaint admits that Plaintiffs knew or should have known of the injury by the date of Babitskaya's death on May 21, 2012. Accordingly, the applicable statute of limitations is one year, pursuant to CCP § 340.5, and began to run on May 21, 2012.

Plaintiffs also argue that "none of the claims in the FAC arise from professional negligence." (Opposition at 3:24-27.) However, as discussed supra, California courts, when applying CCP § 340.5, consider "substance over the form" of the complaint, requiring courts to examine the nature of the professional relationship and whether the injury resulted from the provision of medical services. (Flores, supra, 63 Cal.4th at 75.) Here, Plaintiffs allege the following against Cedars-Sinai, a hospital:

“As a proximate result of continuing abuse and neglect of the deceased . . . while she was under the care and custody of . . . Cedars-Sinai Medical Center, Mrs. Babitskaya died on May 21, 2012 . . . Instead of providing necessary treatment and proper nutrition and hydration to Mrs. Babitskaya, defendants engaged in misuse of anti-psychotic and pain medications which they knew were unnecessary and harmful to the deceased. In addition, they failed to provide the required hygiene to her. Because of the neglect, she developed numerous pressure ulcers and suffered from repeated infections requiring frequent hospitalizations. Due to severe overmedication and untreated infection, Mrs. Babitskaya became unable to eat or drink, suffered cardiac arrest with subsequent coma and died due to denial of proper treatment and nutrition by Cedars-Sinai defendants.”

(See Complaints.)

Based on the foregoing, while Plaintiffs do not individually name a cause of action for professional negligence, the Court considers the complaint’s substance over form, which clearly alleges a professional relationship between Cedars-Sinai and Mrs. Babitskaya in the form of a medical caretaker. Accordingly, Plaintiffs’ argument fails.

As a final matter, while Plaintiffs argue that the demurrer exceeds the length permitted in Cal. Rules of Court Rule 3.1113(d), the Court may frequently consider filings which fail to conform with the CRC.

Based on the foregoing, Plaintiffs’ complaint is time-barred, and Cedars-Sinai’s demurrer to Plaintiffs’ entire complaint is sustained without leave to amend. (See *Six4Three, LLC v. Facebook, Inc.* (2025) 109 Cal.App.5th 635.)

Motion to Strike

The Court sustains Cedars-Sinai’s demurrer to Plaintiffs’ complaint in its entirety without leave to amend. Accordingly, the motion to strike is moot.

IV. CONCLUSION

Cedars-Sinai's
demurrer to Plaintiffs' entire complaint is SUSTAINED without leave to amend.

Cedars-Sinai's
motion to strike is MOOT.

Cedars-Sinai
is dismissed from the action with prejudice.

Cedars-Sinai
to give notice.

Dated: June
____, 2026

Hon. Karen Moskowitz

Judge of the Superior
Court

#2

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

YEVGENYA SHEVTSOV and TATYANA SHEVTSOV, heirs and successors-in-interest to Nadezhda Babitskaya,

Plaintiffs,

vs.

COUNTRY VILLA WILSHIRE HEALTHCARE CENTER; COUNTRY VILLA HEALTH SERVICES; CEDARS-SINAI MEDICAL CENTER; RRT ENTERPRISES; SR&DR OPERATING COMPANY, LLC; ABRAHAM ISHAAYA; MICHAEL BORROCHIM; WILLIAM STANFORD; FANNY RODRIGUEZ; BRADLEY ROSEN; ELEANOR LAVRETSKY; IGNOR SHNAIDER; GADSON JOHNSON; NICETO LOPEZ; MARINA VAYSBURD; JAY GLADSTEIN; JON KEA; MARINA KOVALEVSKY; CAROLYN BELL; SHAUN MILLER; DEMI PENERA; LOURDES UY; and EURLYN VILLAMOR;

Defendants.

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CASE NO: BC546240

[TENTATIVE] ORDER RE: DEFENDANT SR & DR OPERATING COMPANY, LLC'S DEMURRER TO PLAINTIFFS' FIRST AMENDED COMPLAINT WITH MOTION TO STRIKE

Dept. I

DATE: JUNE 30, 2026

TIME: 8:30 A.M.

COMPLAINT FILED: MAY 20, 2014

TRIAL DATE: NONE

I. BACKGROUND

On May 20, 2014, Plaintiffs Yevgenya Shevtsov and Tatyana Shevtsov, heir and successor-in-interest to Nadezhda Babitskaya ("Plaintiffs") filed a complaint against Country Villa Wilshire Healthcare Center, Country Villa Health Services, Cedars-Sinai Medical Center, R&T Enterprises, SR&DR Operating Company, LLC, Abraham Ishaaya, Michael Borrochim, William Stanford, Fanny Rodriguez, Bradley Rosen, Eleanor Lavretsky, Ignor Shnaider, Gadson Johnson, Niceto Lopez, Marina Vaysburd, Jay Gladstein, Jon Kea, Marina Kovalevsky, Carolyn Bell, Shaun Miller, Demi Penera, Lourdes Uy, and Eurlyn Villamor (collectively "Defendants") alleging two causes of action: (1) intentional tort; and (2) fraud.

From July 26, 2019, to January 16, 2024, the action was stayed for bankruptcy as to Defendant Country Villa Wilshire Healthcare Center.

On January 16, 2026, Plaintiffs filed their first amended complaint ("FAC") against Defendants and West Hollywood Healthcare & Wellness Center, LP alleging nine causes of action: (1) wrongful death; (2) elder abuse and neglect; (3) battery; (4) civil conspiracy to commit elder abuse and battery; (5) fraud; (6) constructive fraud; (7) fraud by misrepresentation; (8) SNF Patient Rights' violations; and (9) willful misconduct.

On April 24, 2026, Defendant SR & DR Operating Company, LLC (hereinafter "SR & DR") filed the instant demurrer to and motion to strike portions of Plaintiffs' FAC.

On May 19, 2026, Plaintiffs filed their oppositions.

On May 26, 2026, SR & DR filed its replies.

II. LEGAL STANDARDS

Demurrer

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits "all material facts properly pleaded" and "matters which may be judicially noticed," but does not consider contentions, deductions, or conclusions of fact or law. [Citation]. (Blank, supra, 39 Cal.3d at 318.) The Court gives these facts "a reasonable interpretation, reading it as a whole and its parts in their context." (Ibid.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) "If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence." (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP § 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 [“Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.”].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Cal. Code of Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank, supra, 39 Cal.3d 311, 318.)

Before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike. (CCP § 435.5(a).)

III. DISCUSSION

Meet and Confer

Defense counsel declares that, in April 2026, he attempted to meet and confer telephonically with Plaintiffs on numerous occasions. (Hunter Decl. ¶¶ 6-9.) Plaintiffs did not respond to defense counsel's attempts. (Ibid.) Accordingly, the Court finds that SR & DR satisfies the meet and confer requirements of CCP §§ 430.41(a) and 435.5(a).

Notably, Plaintiffs argue that defense counsel “sabotaged” the meet and confer process because defense counsel offered some dates to meet and confer that were on the weekend. (See Opposition at p. 3.) However, defense counsel also provided various weekdays to meet and confer. (Ibid.) Plaintiffs failed to respond to those dates. (See Hunter Decl.) Accordingly, the Court finds Plaintiffs’ argument in this regard without merit.

Demurrer

SR & DR demurs to Plaintiffs’ entire complaint on the grounds that the complaint is uncertain and Plaintiffs fail to state facts sufficient to constitute each cause of action. (See Demurrer at pp. 2-3.)

Standing

First, SR & DR argues that Plaintiffs lack standing to bring survival claims as wrongful death heirs. (See Demurrer at 3:3-23.) Specifically, SR & DR argues that “[w]rongful death beneficiaries can bring a cause of action for wrongful death based on alleged medical negligence, but not a separate cause of action for medical negligence.” (Ibid. [citing CCP § 377.60].)

CCP § 377.30 provides that a cause of action that survives the death of a person passes to the decedent’s successor in interest and is enforceable by the “decedent’s personal representative or, if none, by the decedent’s successor in interest.” (CCP § 377.30.) The damages recoverable by a personal representative or successor in interest on a decedent’s cause of action are limited by statute to “the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived, and do not include damages for pain, suffering, or disfigurement.” (See CCP §§ 377.20 and 377.34.) To bring a survivor action, the complaint must include an affidavit or declaration under penalty of perjury providing the alleged successor-in-interest’s relationship, duty, contract, or fiduciary duty to the decedent. (See CCP § 377.60.)

Here, Plaintiffs fail to provide any such declaration. Accordingly, pursuant to CCP § 377.60, Plaintiffs lack standing to bring their second through ninth causes of action.

Based on the foregoing, SR & DR’s demurrer to Plaintiffs’ second, third, fourth, fifth, sixth, seventh, eighth, and ninth causes of action is sustained.

Wrongful Death

Next, SR & DR demurs to Plaintiffs’ first cause of action for wrongful death on the grounds that Plaintiffs fail to plead the cause of action with the requisite specificity. (Demurrer at 5:11-21.) Wrongful death claims are statutory in nature, thereby requiring specificity in pleading. (See *Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d 780, 795.) Here, Plaintiffs fail to provide sufficient facts as to what led to the death of Nadezhda Babitskaya to meet this heightened pleading standard. (See generally FAC).

Based on the foregoing, SR & DR’s demurrer to Plaintiffs’ first cause of action for wrongful death is sustained.

Motion to Strike

Next, SR & DR moves to strike Plaintiffs’ requests for punitive damages, prejudgment interest and attorney’s fees. (See Motion at p. 2.) As discussed supra, Plaintiffs fail to adequately plead any of their claims, thereby failing to plead facts warranting punitive damages, prejudgment interest, or attorney’s fees.

Leave to Amend

When a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed, supra, 152 Cal.App.2d at 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See *Angie M.*, supra, 37 Cal.App.4th at 1227.)

Here, Plaintiffs’ original complaint, filed in 2014, and Plaintiffs’ FAC, filed nearly twelve years later, both fail to plead any specific facts giving rise to liability. Therefore, the Court sustains SR & DR’s demurrer to Plaintiff’s entire complaint without leave to amend. The Court also grants SR & DR’s motion to strike without leave to amend.

IV. CONCLUSION

SR & DR's demurrer to Plaintiffs' entire complaint is SUSTAINED without leave to amend.

SR & DR's motion to strike is GRANTED without leave to amend.

Defendant SR & DR Operating Company, LLC is dismissed from the action with prejudice.

SR & DR Operating Company to give notice.

Dated: June ____, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior Court